REQUEST TO THE DISTRICT ATTORNEY GENERAL - EXPUNGE AN ELIGIBLE CONVICTION

TO: The office of the District Attorney General for the judicial district of the convicting court
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FROM: Maria-Alejandra O'Shaughnessy-Whitfield
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DATE OF BIRTH: 1968-12-31

REQUEST TO THE DISTRICT ATTORNEY GENERAL

I am making the written request described below.

The matter this request concerns:

Court or office that handled the matter:
.....

Case or docket number:
.....

Date of the disposition:
.....

What I am asking for:
.....
.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this request personally.)

ELIGIBILITY RECORD - EXPUNGE AN ELIGIBLE CONVICTION

FOR: Maria-Alejandra O'Shaughnessy-Whitfield
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ELIGIBILITY RECORD

Complete every applicable item from your own records. These are the exact generation questions in the committed route contract.

Item 1. Which court handled the case, and in which county? A separate filing is needed in each county where you have a case.
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Item 2. What is the docket or case number?
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Item 3. What was the charge, and exactly how did the case end?
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Item 4. On what date did the case end?
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Item 5. What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
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Item 6. List every other conviction you have anywhere, including federal and out-of-state.
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Item 7. Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
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Item 8. What is the exact T.C.A. section you were convicted under? The offence name and class are not enough - Tennessee's eligible lists are section by section.
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Item 9. On what date was the offence committed? This matters independently of the conviction date, because a 2026 change applies only to offences committed on or after 1 July 2026.
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Item 10. Did the conviction occur on or after 1 November 1989?
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Item 11. On what date did you finish the entire sentence - including any imprisonment or probation, all release conditions, and every fine, restitution amount, court cost and other assessment?
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Item 12. Is every fine, restitution amount, court cost and other assessment paid in full? Anything outstanding means the sentence is not complete and the clock has not started.
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Item 13. Have you ever had a conviction expunged in Tennessee before under T.C.A. Sec. 40-32-107(a), (b), (c) or (e)? This route is available once in a lifetime and a previous grant under (a), (b) or (c) closes it. A grant under (e) is recorded because the statute is asymmetric on the point, and no bar is applied against you that the subsection does not state.
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Item 14. Did you hold a commercial driver licence at the time, and did the offence involve a controlled substance or a commercial motor vehicle?
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Item 15. Did your sentence require a period free from dependency on or abuse of alcohol or a controlled substance? If so, have you met at least one year of it?
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Item 16. Was the conviction for burglary under T.C.A. Sec. 39-13-1002? If so, the date of the offence decides whether the wait is five years or ten.
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Item 17. Have you received a pardon from the Governor for this conviction? If you have, a different route may reach it even where this one cannot.

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Item 18. If a DUI conviction is what is standing in the way: have you successfully completed a certified recovery court programme, and did the offence you want cleared happen at least ten years after that DUI conviction?

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.....

DATE ..... SIGNATURE .....

(The person named above signs and dates this record personally.)

PROCESS AND EXPECTATION INSTRUCTIONS - EXPUNGE AN ELIGIBLE CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Expunction of an eligible conviction, T.C.A. Sec. 40-32-107(a) with procedure at Sec. 40-32-108.

Public Chapter 268 of 2025 split the former Sec. 40-32-101(g) conviction route along an eligibility and procedure seam: Sec. 40-32-107 now defines who is an eligible petitioner and Sec. 40-32-108 supplies the whole procedure. That mapping is officially corroborated rather than inferred - Public Chapter 268's own conforming amendments replaced the old citation to Sec. 40-32-101(g)(3) with Sec. 40-32-107 and the old Sec. 40-32-101(g) with Sec. 40-32-107(a)(1), and replaced procedural references to Sec. 40-32-101 with Sec. 40-32-108. Eligibility under Sec. 40-32-107(a) turns on the offence being on one of the enumerated Class C, Class D or Class E felony lists or within the misdemeanour category subject to its exclusion list, the offence having occurred on or after 1 November 1989 and prior to any conviction for an expunction-ineligible offence including federal and out-of-state offences, no previous expunction under subsection (a), (b) or (c), and fulfilment of every sentence requirement including all fines, restitution, court costs and other assessments, completion of imprisonment or probation, all release conditions, and any required year free from dependency on or abuse of alcohol or a controlled substance. The waiting period at Sec. 40-32-107(a)(3)(B) runs from completion of the sentence: five years for a misdemeanour or Class E felony and ten years for a Class C or Class D felony. Subsection (a)(4) directs the petitioner to Sec. 40-32-108, whose subsection (e) requires the petition and proposed order to be prepared by the office of the district attorney general and given to the petitioner to file. Public Chapter 719, effective 2026-04-14, rewrote the Sec. 40-32-108(d)(2) decision standard, preserving the rebuttable presumption for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E) while directing the court to weigh the petitioner's interest against the best interests of justice and public safety. Public Chapter 930, effective 2026-07-01 and applying only to offences committed on or after that date, relocated burglary under Sec. 39-13-1002 from the Class E list to the Class D list, which doubles the wait for that offence from five to ten years prospectively only.

WHERE IT GOES

The office of the district attorney general for the judicial district of the convicting court
Section 40-32-108(e) requires the petition and proposed order to be prepared by the district attorney general's office and given to the petitioner to be filed with the clerk. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from that office. LegalEase generates the participant's request and eligibility record; it does not generate the petition or the order, because those are prosecutor and court instruments.
Venue: Statewide statute with originating-court venue and prosecutor-office routing. The request goes to the office of the district attorney general for the judicial district of the convicting court, because Sec. 40-32-108(e) makes that office the preparer of the petition. The petition, once prepared, is filed by the petitioner with the clerk of the convicting court under Sec. 40-32-108(a). A person with convictions in several judicial districts deals with each separately.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: A clerk's fee applies. Section 40-32-108(a) provides that a person applying for expunction of records under the section must be charged the appropriate court clerk's fee pursuant to T.C.A. Sec. 8-21-401. The amount is set by Sec. 8-21-401, whose current text sits in the licensed code and could not be retrieved from an official Tennessee source on 2026-08-06, so no figure is quoted. The superseded AOC-hosted fee figure is not used. Ask the clerk of the court where the petition is filed what it charges before filing. Public Chapter 719 did not change any fee provision. Fee waiver as recorded: No indigency or fee-waiver provision appears anywhere in the reorganized Sec. Sec. 40-32-106 through 40-32-110. None is asserted.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general, who may submit recommendations within 60 days with a copy to the petitioner, and who may file evidence under seal which is confidential and not a public record. The court may not order sooner than 61 days after service.

WHAT THE RECORD SAYS YOU MUST KNOW

- Where the eligibility requirements are satisfied there is a rebuttable presumption that the petition should be granted, which shifts the practical burden to the district attorney general to object. Public Chapter 719, effective 2026-04-14, rewrote T.C.A. Sec. 40-32-108(d)(2) and preserved that presumption for petitioners eligible under Sec. 40-32-107(a)(1)(A) to (E), while providing that the court weighs the interest of the petitioner against the best interests of justice and public safety. The packet may describe the presumption; it may not state that the petition will be granted.
- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Routing added by the integrated Tennessee 2026 route inventory decision, without any change to this route's own eligibility rules. A participant refused here because the conviction is outside the Sec. 40-32-107(a)(1) lists but who holds a gubernatorial pardon is evaluated under tn_post_pardon. A participant refused here only by the Sec. 40-32-107(a)(3)(A) predating condition because of a DUI conviction, who completed a certified recovery court programme with a ten-year interval, is evaluated under tn_recovery_court. The exclusion list is unchanged in both cases.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would

be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.
- Mapping the offence to its exact T.C.A. section and checking it against the current eligible list is not something an offence label or class can settle. The eligible lists at T.C.A. Sec. 40-32-107(a)(1) are enumerated section by section - Class C, Class D and Class E felony lists and a misdemeanour category with a long exclusion list - and the legislature has expanded them repeatedly, most recently by Public Chapter 930. The packet checks the current list rather than assuming, and any borderline offence goes to review.
- Under T.C.A. Sec. 40-32-108(e) the petition and proposed order must be prepared by the office of the district attorney general and given to the petitioner to be filed with the clerk of the court. The petition is therefore a prosecutor instrument, and LegalEase does not generate it. What LegalEase generates is the participant's own written request to the district attorney general's office for the conviction-expunction packet, with the supporting eligibility record. Both the Tennessee AOC and the TBI direct participants to request a conviction expungement packet from the district attorney's office, which is the practical face of that provision.

THE PAGES IN THIS SET

- tn_eligible_conviction-request-to-district-attorney-1: the written request to the prosecutor's office the record names as the preparer (Expunge an eligible conviction)
- tn_eligible_conviction-eligibility-record-2: the participant's own record of the facts the prosecutor's office will need (Expunge an eligible conviction)

ALTERNATIVE ROUTE SCREENING - EXPUNGE AN ELIGIBLE CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the alternative route screening component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any felony, or any borderline Class C, D or E offence whose exact section cannot be matched against the current eligible list.
- Any other conviction anywhere on the record. The no-other-conviction requirement reaches federal and out-of-state offences that would be ineligible in Tennessee.
- Any unpaid court costs, fines or restitution.
- The district attorney general's office declines to prepare the petition, or indicates it will oppose.
- A previous expunction was granted under Sec. 40-32-107(a), (b) or (c), which closes the route for life.
- The participant is refused here but holds a gubernatorial pardon, or is refused only by the DUI predating condition and has completed a certified recovery court programme. Rather than stopping, the participant is routed to tn_post_pardon or tn_recovery_court respectively before any no-relief answer is given.